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U.S. DISTRICT COURT E.D.N.Y.

★ APR 30 2007
BROOKLYN OFFICE

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

NANCY SANCHEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, MICHAEL BURBRIDGE
AND JOHN DOES #1-3, DEPARTMENT OF CORRECTION
COMMISSIONER MARTIN F. HORN, and CHARLES J.
HYNES, DISTRICT ATTORNEY OF KINGS COUNTY,

Defendants.

CV 07 1777
COMPLAINT

JURY TRIAL DEMANDED

AMON, J.

POHORELSKY, M.J.

Plaintiff, Nancy Sanchez, by and through her attorneys, THE LAW OFFICE OF
SCOTT G. CERBIN, LLC, complaining of the defendants herein, respectfully shows
the Court and alleges:

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiff seeks relief for the defendant's violation of her rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981 and 1983; by the United States Constitution, including its Fourth and Fourteenth Amendments, and by the laws and Constitution of the State of New York. The plaintiff seeks damages, both compensatory and punitive, affirmative equitable relief, an award of costs and attorney's fees, and such other and further relief as this court deems just and equitable.

JURISDICTION AND VENUE

2. Jurisdiction of this Court is invoked under 28 U.S.C. § 1343 and 42 U.S.C. §§ 1981 and 1983.

3. The plaintiff further invokes this court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all state law claims and as against all parties that are so related to claims in this action within the original jurisdiction of this court that they form part of the same case or controversy.

4. Venue herein is proper for the United States District Court for the Eastern District of New York under 28 U.S.C. § 1391 (a), (b) and (c).

NOTICE OF CLAIM

5. Plaintiff filed a Notice of Claim with the Comptroller of the City of New York on or about December 11, 2006 within 90 days of the events complained of herein. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.

PARTIES

6. Plaintiff Nancy Sanchez is 39 years old and at all times hereinafter mentioned was and still is a citizen of the United States residing in the State of New York and the County of Kings.

7. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant THE CITY OF NEW YORK is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. THE CITY OF NEW YORK is also authorized to maintain a corrections department, which acts as its agent in the area of

policing New York City jails. Defendant THE CITY OF NEW YORK assumes the risks incidental to the maintenance of a police force and a corrections department and the employment of police and correction officers as said risk attaches to the public consumers of the services provided by the New York City Police Department and New York City Department of Corrections.

9. Defendant DEPARTMENT OF CORRECTION COMMISSIONER MARTIN F. HORN ("The Commissioner") was at all times here relevant the Commissioner of the New York City Department of Correction, and, as such, was a policy maker with respect to training, supervision, and discipline of correction officers. The Commissioner is sued in his individual and official capacities.

10. Defendant CHARLES J. HYNES, DISTRICT ATTORNEY OF KINGS COUNTY, ("The District Attorney") is the chief law enforcement officer of Kings County. The District Attorney is a local policy maker charged with the hiring, screening, training, retention, supervision, discipline, and control of the Assistant District Attorneys in his employ. The District Attorney is sued in his individual and official capacities.

11. Defendants BURBRIDGE and DOES are and were at all times relevant herein duly appointed and acting officers, servants, employees and agents of THE CITY OF NEW YORK and/or the New York City Police Department, a municipal agency of defendant THE CITY OF NEW YORK. Defendants BURBRIDGE and DOES are and were at all times relevant herein acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant THE CITY OF NEW YORK, were acting for, and on behalf of, and with the power and authority vested in them by THE CITY OF NEW YORK and the New York City Police

Department, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. Defendants BURBRIDGE and DOES are sued individually.

STATEMENT OF FACTS

12. On or about November 29, 2006 at approximately 11:00 p.m. in the County of Kings, plaintiff NANCY SANCHEZ was offered a ride home by a Mr. Pedro Rosario-Vasquez; a patron of the establishment at which Ms. Sanchez had just finished working. Upon the plaintiff entering Mr. Vasquez's vehicle plaintiff, Mr. Vasquez, and a third-party were promptly detained and subsequently arrested by defendants BURBRIDGE and DOES. Said parties were charged with *inter alia* Criminal Possession of a Controlled Substance in the Third Degree; NY Penal Law § 220.16(12). Upon information and belief defendant's BURBRIDGE and DOES had no reason to believe that plaintiff had any knowledge of the contraband allegedly recovered from Mr. Vasquez's vehicle. Upon information and belief defendant's BURBRIDGE and DOES arrested plaintiff in bad faith and solely to inflate their arrest numbers.

13. On December 5, 2006 a Kings County Grand Jury found that no probable cause existed that plaintiff Nancy Sanchez committed any offense. The grand jury returned a verdict of no true bill and the case was dismissed that evening in the criminal court.

14. Despite the no true bill and dismissal of the criminal case on December 5, 2006, the plaintiff was not released from custody as required by law. Instead, plaintiff was returned to Rikers Island where she was unlawfully incarcerated for an additional three (3) days before being released on December 8, 2006.

15. Upon information and belief defendants THE COMMISSIONER and THE DISTRICT ATTORNEY have an actual and/or *de facto* policy and practice of failing to ensure the immediate release from custody of incarcerated defendants upon dismissal of their cases by the grand jury.

AS AND FOR A FIRST CAUSE OF ACTION
(Deprivation of federal civil rights under the United States Constitution and 42 U.S.C §§ 1981 and 1983 by defendants BURBRIDGE and DOES)

16. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

17. By their conduct and actions in arresting, imprisoning, failing to intercede on behalf of plaintiff and in failing to protect her from the unjustified and unconstitutional treatment she received at the hands of other defendants, defendants BURBRIDGE, DOES, acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to or a reckless disregard for the natural and probable consequences of their acts, caused injury and damage in violation of the plaintiff's constitutional rights as guaranteed under 42 U.S.C. §§ 1981 and 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

18. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SECOND CAUSE OF ACTION
(Deprivation of federal civil rights under the United States Constitution and 42 U.S.C §§ 1981 and 1983 by THE COMMISSIONER)

19. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

20. At all times material to this complaint, defendant THE COMMISSIONER had in effect actual and/or *de facto* policies, practices, customs and usages that were a direct and proximate cause of unconstitutional conduct by correction officers and other staff members of the New York City Department of Corrections.

21. Defendant THE COMMISSIONER failed to properly train, supervise or discipline members of the department of corrections concerning correct practices in ensuring the immediate release of persons being held for grand jury action and upon a no true bill.

22. Defendant THE COMMISSIONER being aware that such lack of training, supervision, and discipline leads to improper conduct by correction officers and other staff members of the New York City Department of Corrections acted with deliberate indifference in failing to establish a program of effective training, supervision and discipline. Defendant THE COMMISSIONER is aware of the persistent and substantial risk of illegal detention of persons discharged by the criminal or supreme courts and effective training and discipline would lessen the likelihood of such occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens which are officially tolerated by THE COMMISSIONER. The New York City Department of Corrections acted with indifference to or a reckless disregard for the natural and probable consequences of their acts, and caused injury and damage in violation of the plaintiff's constitutional rights as guaranteed under 42 U.S.C. §§ 1981

and 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

23. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A THIRD CAUSE OF ACTION
(Deprivation of federal civil rights under the United
States Constitution and 42 U.S.C §§ 1981 and 1983
by THE DISTRICT ATTORNEY)

24. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

25. At all times material to this complaint, defendant THE DISTRICT ATTORNEY had in effect actual and/or *de facto* policies, practices, customs and usages that were a direct and proximate cause of unconstitutional conduct by Assistant District Attorneys and other staff members of the Kings County District Attorney's Office.

26. Defendant THE DISTRICT ATTORNEY failed to properly train, supervise or discipline members of the Office of the Kings County District Attorney concerning correct practices in ensuring the immediate release of persons being held for grand jury action and upon a no true bill.

27. Defendant THE DISTRICT ATTORNEY being aware that such lack of training, supervision, and discipline leads to improper conduct by Assistant District Attorneys and other staff members of the Office of the District Attorney, Kings County, acted with deliberate indifference in failing to establish a program of effective training, supervision and discipline. Defendant THE DISTRICT ATTORNEY is aware of the persistent and substantial risk of illegal detention of persons discharged by the criminal or supreme courts and effective training and discipline would lessen the likelihood of such

occurrences. There are recurrent circumstances which involve such potential danger to the constitutional rights of citizens which are officially tolerated by THE DISTRICT ATTORNEY. The Office of the District Attorney acted with indifference to or a reckless disregard for the natural and probable consequences of their acts, and caused injury and damage in violation of the plaintiff's constitutional rights as guaranteed under 42 U.S.C. §§ 1981 and 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

28. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FOURTH CAUSE OF ACTION

(False arrest and false imprisonment
by defendants HAMMOND and DOES)

29. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

30. By the actions described above, defendants HAMMOND and DOES falsely arrested or caused to be falsely arrested plaintiff without reasonable or probable cause, illegally and without a warrant, and without any right to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

31. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A FIFTH CAUSE OF ACTION

(False imprisonment by defendants the
COMMISSIONER and the DISTRICT ATTORNEY)

32. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

33. By the actions described above defendants the COMMISSIONER and the DISTRICT ATTORNEY falsely imprisoned or caused to be falsely be imprisoned plaintiff, illegally, and without any right to do so. The acts and conduct of the defendants COMMISSIONER and DISTRICT ATTORNEY were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

34. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SIXTH CAUSE OF ACTION
(Negligent infliction of emotional harm)

35. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

36. The above named defendants negligently caused emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of emotional injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

37. As a result of the foregoing, plaintiff was deprived of her liberty, suffered specific bodily injury, pain and suffering, great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A SEVENTH CAUSE ACTION
(Liability of the City of New York
for constitutional violations)

38. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

39. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, correction department, and through defendants HAMMOND, DOES, BURBRIDGE, THE COMMISSIONER, and THE DISTRICT ATTORNEY had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

40. At all times material to this complaint, defendant THE CITY OF NEW YORK, acting through its police department, correction department, and through defendants BURBRIDGE, DOES, THE COMMISSIONER, and THE DISTRICT ATTORNEY had *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise or discipline employees, police officers, correction officers, assistant district attorneys and of failing to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline said defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

41. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

AS AND FOR A EIGHTH CAUSE OF ACTION
(Negligent hiring, screening, retention, supervision and training)

42. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

43. Defendant THE CITY OF NEW YORK negligently hired, screened, retained, supervised and trained defendants HAMMOND and DOES. The acts and

conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

44. As a result of the foregoing, plaintiff was deprived of her liberty, suffered great humiliation, costs and expenses, and was otherwise damaged and injured.

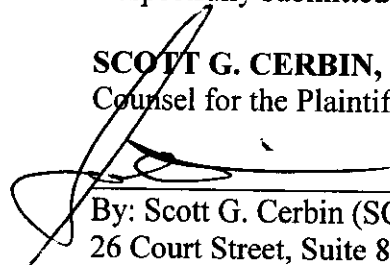
WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorneys' fees;
- e. Such other further relief as this court may deem appropriate and equitable.

Dated: Brooklyn, New York
April 27, 2007

Respectfully submitted,

SCOTT G. CERBIN, LLC
Counsel for the Plaintiff



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